

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

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JAYQUAN TOWNSEND,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

DETECTIVE ABRAHAM ARTEAGA (Shield # 1337),
POLICE OFFICERS JOHN DOE 1-2,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 8, 2020

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Defendants' Address(es):

New York City Police Department
75th Police Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
JAYQUAN TOWNSEND,

Plaintiff,

-against-

COMPLAINT

DETECTIVE ABRAHAM ARTEAGA (Shield # 1337),
POLICE OFFICERS JOHN DOE 1-2,

Defendants.

-----X

JAYQUAN TOWNSEND (hereinafter "plaintiff"), by his attorney(s) THE LAW
OFFICES OF WALE MOSAKU, P.C., complaining of the defendants DETECTIVE
ABRAHAM ARTEAGA (Shield # 1337) and POLICE OFFICERS JOHN DOE 1-2
(hereinafter collectively referred to as "defendant officers"), upon information and well
founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is an African-American male of full age.
3. At all relevant times the defendant officers were, and upon information and well founded belief, still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").

4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

FACTUAL ALLEGATIONS

5. On or about May 11, 2019, at approximately 03:00 p.m., at, within or close to the intersection of Georgia Avenue and Sutter Avenue in Brooklyn, New York ("subject location") the plaintiff was unlawfully and wrongfully arrested by defendant officers John Doe 1-2 (described as a white male and an Asian male¹ respectively), who at the time were clothed in their official NYPD uniforms.
6. That immediately prior to his arrest, the plaintiff was seated within his parked vehicle. That as the plaintiff was seated within his vehicle, defendant officers John Doe 1-2 approached him. That at that time the white male defendant officer informed the plaintiff that he (the officer) knew him (the plaintiff).
7. That the plaintiff responded that he did not know the white male defendant officer. The white male defendant officer then asked the plaintiff to provide him with a form of identification, and the plaintiff complied.
8. That after the plaintiff had provided the white male defendant officer with his identification card, the white male defendant officer instructed the plaintiff to step out of his vehicle. The plaintiff complied with the white male defendant officer's instruction, at which point the white male defendant officer placed the plaintiff in handcuffs.
9. After the plaintiff was handcuffed, the white male defendant officer started to communicate on his NYPD issued radio, as the Asian male defendant officer stood with the plaintiff.

¹ Who was wearing a turban around his head at the time.

10. That a few minutes later, an NYPD vehicle showed up at the scene of the plaintiff's arrest, that the plaintiff was placed in the vehicle, and then transported to the 75th police precinct.
11. Upon arrival at the 75th police precinct, the plaintiff was taken before the desk sergeant, and thereafter placed in a cell.
12. That a couple of hours after being placed in a cell, the white male defendant officer came to speak with the plaintiff, and informed him that even though he (the white male defendant officer) was the arresting officer, that the matter was going to be turned over to a Detective.
13. The white male defendant officer then walked away from the plaintiff's cell. At this juncture, the plaintiff had not been fingerprinted, photographed, or informed of his offense.
14. The plaintiff remained in a cell until approximately 11:00 a.m. the next day (May 12, 2019), at which point defendant Detective Arteaga approached him, and informed the plaintiff that he (non-party Detective Arteaga) would start processing the case for which the plaintiff had been arrested.
15. Defendant Detective Arteaga then asked the plaintiff for his height, to which the plaintiff responded that he was 5'5. In response, defendant Detective Arteaga disputed the height measurement that the plaintiff had provided, informing the plaintiff that in his (Detective Arteaga's) view the plaintiff was approximately 5'7-5'8 tall.
16. Defendant Detective Arteaga also asked the plaintiff for his weight, to which the plaintiff responded that he was approximately 185-190 pound. In response, defendant Detective Arteaga disputed the weight measurement that the plaintiff had provided, informing the plaintiff that in his (Detective Arteaga's) view the plaintiff was approximately 210-220 pounds.
17. After taking the plaintiff's measurement, defendant Detective Arteaga informed the plaintiff of the offenses that he was being

charged with, including assault and possession of a weapon, and thereafter processed the plaintiff by fingerprinting and photographing the plaintiff.

18. After the plaintiff was processed, at approximately 10:00 p.m. on May 12, 2019 he was taken to "Central Booking", located within the NYC Criminal Courthouse building located at 120 Schermerhorn, Brooklyn, New York 11201.
19. At "Central Booking" the plaintiff was again processed.
20. At approximately 11:30 p.m. on May 12, 2019, the plaintiff was arraigned before a Judge of the Kings County Criminal Court, and charged with the following offenses:
 - a. PL 110/120.10(1) – Attempted Assault in the First Degree;
 - b. PL 265.03(3) – Criminal Possession of a Weapon in the Second Degree;
 - c. PL 120.05(2) – Assault in the Second Degree;
 - d. PL 265.02(1) – Criminal Possession of a Weapon in the Third Degree;
 - e. PL 110/120.05(1) – Attempted Assault in the Second Degree;
 - f. PL 265.01-B(1) – Criminal Possession of a Firearm;
 - g. PL 120.00(1) – Assault in the Third Degree;
 - h. PL 120.14(1) – Menacing in the Second Degree;
 - i. PL 265.01(1) – Criminal Possession of a Weapon in the Fourth Degree;
 - j. PL 120.15 – Menacing in the Third Degree;
 - k. AC 10-131(I)(3) – Possession of Pistol Ammunition; and
 - l. PL 265.26(1) – Harassment in the Second Degree.
21. Within the criminal complaint, defendant Detective Arteaga alleged, *inter alia*, that an unnamed witness had informed him (the defendant detective) that at approximately 09:20 a.m. on May 9, 2019, in the parking lot of the premises located at 592 Sutter Avenue in Brooklyn, he/she (the witness) had observed the plaintiff shoot at a victim named Jarrell Simmons.
22. Bail was set at the amount of \$35,000.00 (bond \$3,500.00) which the plaintiff could not immediately afford to post. As such the plaintiff was remanded to the Brooklyn House of Detention located at 275 Atlantic Avenue, Brooklyn, New York 11201.

23. The plaintiff remained at the Brooklyn House of Detention until approximately 11:00 p.m. on May 14, 2019, at which point he was released after he had met the conditions of his bail.
24. The plaintiff returned to Court for a mandated appearance on May 17, 2019, and the matter was adjourned.
25. The criminal proceedings instituted against the plaintiff were dismissed on June 27, 2019. The Kings County Criminal Court Docket # was CR-0185465-19KN.
26. As a result of his unlawful arrest and imprisonment, the plaintiff, who was employed at the time, was caused to miss time from work, resulting in loss of earnings.
27. Furthermore, the defendant officers informed the press (specifically the New York Post newspaper) and media of the plaintiff's arrest, resulting in the plaintiff's name being publicized in the New York Post newspaper as the perpetrator of a heinous crime.
28. To date, a google search of the plaintiff's name will reveal said newspaper article.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

29. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
30. That the defendant officers searched, or caused the plaintiff and/or his property to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.
31. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search.
32. As a result of the foregoing, the plaintiff was subjected to an illegal and improper strip search.

33. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
34. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

35. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
37. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
38. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers, individually and severally.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

39. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 38 of this complaint as though fully set forth herein.

40. The commencement and continued prosecution of the criminal judicial proceeding against plaintiff, including the arrest, the imprisonment, and the charges against plaintiff were committed by or at the insistence of each defendant officer without probable cause or legal justification, and with malice.
41. That each defendant officer was directly involved in the initiation of criminal proceedings against the plaintiff.
42. That each defendant officer lacked probable cause to initiate criminal proceedings against the plaintiff.
43. That each defendant officer acted with malice in initiating criminal proceedings against the plaintiff.
44. That each defendant officer was directly involved in the continuation of criminal proceedings against the plaintiff.
45. That each defendant officer lacked probable cause in continuing criminal proceedings against the plaintiff.
46. That each defendant officer acted with malice in continuing criminal proceedings against the plaintiff.
47. That each defendant officer misrepresented and falsified evidence throughout all phases of the criminal proceedings.
48. That each defendant officer misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
49. That each defendant officer withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
50. That each defendant officer did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
51. The criminal judicial proceeding initiated against plaintiff were dismissed on June 27, 2019, and terminated in the plaintiff's favor. The Kings County Criminal Court Docket # was CR-0185465-19KN.
52. The arrest, imprisonment and prosecution of the plaintiff were malicious and unlawful, because plaintiff had committed no crime

and there was no probable cause to believe that plaintiff had committed any crimes.

53. The defendant officers' actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against the plaintiff were false and untrue.
54. As a consequence of the malicious prosecution that was initiated by the defendant officers, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
55. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each defendant officer, individually and severally.
56. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE(S) OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A
FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF
EVIDENCE

57. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 56 of this complaint as though fully set forth herein.
58. Each defendant, in his capacity as an "investigating officer" fabricated evidence against the plaintiff.
59. The evidence that each defendant fabricated against the plaintiff was likely to influence a jury's decision.
60. Each defendant forwarded the fabricated evidence concerning the plaintiff to the prosecutors in the Kings County District Attorney's office.
61. That the plaintiff suffered a deprivation of his liberty as a result of the above-referenced actions of each defendant officer.

62. By creating fabricated evidence against the plaintiff; and forwarding said fabricated evidence to prosecutors which directly resulted in the plaintiff being deprived of his liberty, each defendant violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
63. As a consequence of each defendant's actions, the plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
64. The plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendants, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

65. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 64 of this complaint as though fully set forth herein.
66. Each defendant officer had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
67. Each defendant officer failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
68. As a consequence of each defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
69. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant.

WHEREFORE, plaintiff prays for judgment against each defendant officer, as follows: for compensatory damages in an amount to be proven at trial; for exemplary and punitive damages in an amount to be proven at trial; for costs and expenses of suit herein,

including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

JAYQUAN TOWNSEND,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

DETECTIVE ABRAHAM ARTEAGA (Shield # 1337),
POLICE OFFICERS JOHN DOE 1-2,

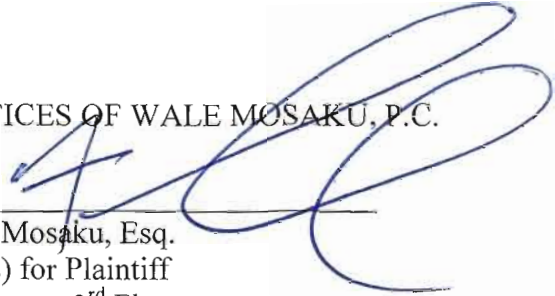
Defendant.

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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
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